CMA Board Approval: August 8, 2026
Effective date: September 1, 2026

COOLFONT MOUNTAINSIDE ASSOCIATION POLICY RESOLUTION 2026-03
CMA Water & Sewer - Leak Adjustment Policy

This Policy Resolution supersedes Policy Resolution 2024-01 of the same name, approved in December 2023. It includes information from the revised WV Title 150 Series 5 and Series 7, effective September 14, 2021.

Current Tariffs

Coolfont Mountainside Association Water & Sewer (CMAWS) operates under West Virginia Public Service Commission (WVPSC) tariffs for water and sewer. These tariffs are available for review on the WVPSC website, the CMA website, and posted in the CMA Office.

Objectives

The objectives of this leak adjustment policy are two-fold:

1. To provide relief to owners faced with extraordinarily costly water bills due to leaks beyond their control; and
2. To safeguard the interest of the Association by –
    a. recovering the actual cost of the lost water; and
    b. providing a financial incentive for owners to monitor water use and make timely repairs.

Eligibility

Owners who receive quarterly water bills for unusual usage due to a leak on the customer's side of the water meter in excess of 200% of their historical usage, may apply to the Association for a leak adjustment. "Historical usage" is defined as the average billed usage for the preceding four quarters of billing. In cases where such information is unavailable the Finance Committee will work with the Water & Sewer Committee to determine "historical usage" based on the best information available. The leak must be repaired in a timely manner after detection or notification. An adjustment may be denied if the property owner or tenant has knowledge of the leak and fails to complete timely repairs.

Documentation

A request for a leak adjustment must be filed with the CMA Water & Sewer Committee in writing or by email within 30 days of the original bill date. Prior to consideration of an adjustment to the bill, the owner must provide CMAWS with verification that a leak occurred and was repaired by a licensed plumber or by the owner if the repair was minimal. Evidence of repair, such as a copy of an invoice for repair materials or a plumber's invoice is sufficient. Requests for adjustments without verification will be denied.

Review

The Water & Sewer Committee, on behalf of the Board, will review an owner's request, the current bill, any documentation provided, and the customer's historical usage. A Leak Adjustment worksheet will be completed by the CMAWS Chair or designee and provided to the Water & Sewer Committee for

approval or denial; denials will be finalized by the Board. The Committee will issue a notice of adjustment or denial of adjustment to the owner by email. The Committee Chair will notify the bookkeeper of any adjustment approval. The bookkeeper will post an adjustment to the original bill and send the owner an adjusted bill via mail and/or email. Payment of the adjusted amount will be due within 20 days.

Fees

To offset the costs associated with processing a Leak Adjustment Request, owners will be charged a $50 administrative fee to process a Leak Adjustment Request. The administrative fee will be added to the customer's invoice.

Limits

CMAWS will provide only one leak adjustment every 12 months per lot. Owners who are granted leak adjustments for more than one billing quarter within a three-year period must provide proof their plumbing system leaks have been repaired by a WV-licensed plumber.

The owner is responsible for all costs related to the repair of their water system. Proof must be emailed or sent to CMAWS within sixty (60) days of the mailed/emailed request for the leak adjustment. Failure to provide documentation of repairs by a WV-licensed plumber will delay consideration of the leak adjustment request until the documentation is provided.

WV CSR 150 Series 7

Title 150 Legislative Rule – Public Service Commission;
Series 7 – Rules for the Government of Water Utilities:

6.4.3. Leaks on the customer's side of the meter.

6.4.3.a. Each utility shall implement a written leak adjustment policy consistent with this rule.

Where the bill reflects unusual usage in excess of 200% of the customer's historical usage that can be attributed to leakage on the customer's side of the meter, the utility will adjust the bill. The policy shall be maintained in the utility's office for inspection by the public and shall be applied in a non-discriminatory manner to all customers. The policy shall be filed with the Commission as a part of the utility's tariff. The reasonableness of the utility's policy shall be subject to approval by the Commission and the reasonableness of the utility's practice with respect to implementing a policy shall be subject to Commission review in a formal complaint proceeding.

6.4.3.b. The recalculated bill shall reflect the utility's incremental cost of treating or purchasing the water, as contained in the utility's tariff, for all amounts above 200% of the customer's historic usage. Historic usage shall be defined as the average usage of the preceding twelve (12) months, or actual period of service if less than twelve (12) months. If using the historic usage would result in an unreasonable calculation, adjustments may be made. If such adjustments are made, the utility should advise its customer that a dispute regarding such adjustments may be taken to the Commission in the form of an informal complaint.

Request for Adjustment

A request for leak adjustment must be filed in writing or by email within 30 days of the original bill date. Owners must provide proof the leak was repaired by a licensed plumber, unless it is for a minimal repair with an invoice, photos, or other documentation. Please refer to the Limits section of the policy.

You can use the following form or email the same information to the CMA Water & Sewer Committee cmahoa.ws@gmail.com. If using email, please include "Leak Adjustment Request" in the subject, include all the information and text below, and attach any supporting documents.

There will be an administrative fee of $50 charged to your invoice to process the request regardless of the decision.

Leak Adjustment Request

Mail this completed form to the below address or email it to cmahoa.ws@gmail.com.

CMA Water & Sewer
P O Box 418
Berkeley Springs, WV 25411

CMA Lot Number (Example: R-7) _____

Owner Name _____

Date of Water/Sewer Bill _____

Amount of Bill _____

Description of Leak _____

Date Leak was Repaired _____

Please include a copy of documentation of the repair (invoice, receipt, etc)

I understand that an administrative fee of $50 will be charged to my invoice for the processing of my leak adjustment request, regardless of outcome.

I understand that CMA could deny my request if the information I provide about the repairs to correct the leak is incorrect or incomplete. Therefore, I certify that my current water/sewer bill reflects unusual usage in excess of 200% of my historical billed usage due to a water leak on my property.

I request that CMA Water & Sewer grant a Leak Adjustment to my bill in accordance with the CMA Leak Adjustment Policy. I certify I have repaired the leak and include the attached copies of invoices by WV licensed plumber, receipts, pictures, and other documents.

Signature of Lot Owner Date Signed

Adjustment Worksheet Samples

Owners will pay for 200% of the historical billed usage at the current tariff rates. In addition, the PSC provides an "incremental rate" for water and sewer usage in excess of 200% to recover the costs of treatment and pumping which are included in the current tariffs.

The worksheets below provide an example of the adjustment calculations.

With Sewer Treatment

In the first example, the owner of N-14 received a bill for March 2022 for $1,261.36, or 21,350 gallons of water and applicable sewer charge. The leak was water that **was** processed through the wastewater system (*i.e.*, a leaking toilet, faucet left running, etc).

The previous four billing periods are used to determine the Historical Quarterly Usage of 5,537 gallons. The owner pays 200% of the "historical usage" of 11,073 for water and sewer at the current tariff rates. They also pay the incremental costs on the number of gallons over 200% of Historical Usage amount. The amounts are added together to determine the Total Adjusted Bill for that period.

Without Sewer Treatment

In the second example, the owner of N-14 received a bill for March 2022 for $1,261.36, or 21,350 gallons of water and applicable sewer charge. The leak was water that **was not** processed through the wastewater system (*i.e.* an outdoor spigot, a broken underground pipe, etc.). The customer is charged only the Historical Usage for sewer.

The previous four billing periods are used to determine the Historical Quarterly Usage of 5,537 gallons. The owner pays 200% of the "historical usage" of 11,073 for water at the current tariff rates. They also pay the incremental costs on the number of gallons of water over the 200% of Historical Usage amount. For sewer, the customer pays only the Historical Usage amount at the current tariff (not 200% and no incremental) as the leaked water did not process through the sewer treatment facility. The amounts are added together to determine the Total Adjusted Bill for that period.

The last section on each worksheet is for accounting purposes, to note the adjustment amount for water and sewer separately. This information is entered into CMA's accounting system to adjust the owner's bill and a new bill is provided.

Rates reflected in the attached worksheet examples may not be the current tariff rates for the utilities and are provided for reference only.

CMA Water & Sewer Leak Adjustment
Including Sewer Treatment for Leak

Lot number N-14
Bill Month Mar 2022

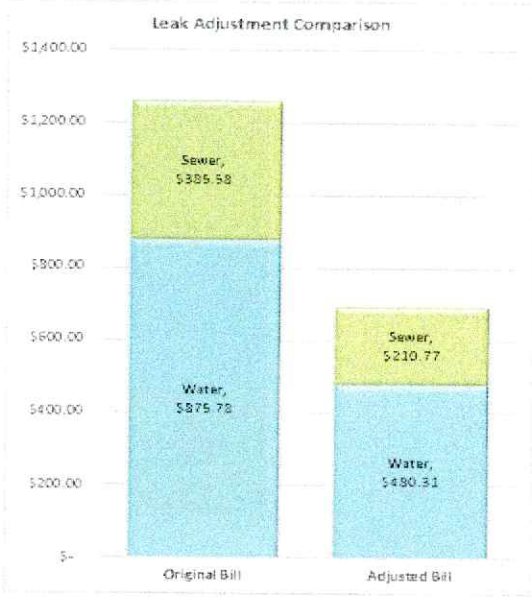
Fields shaded in blue are entered using data from W&S financial records.
The form will automatically calculate the Leak Adjustment.

Normal Usage

March 2021	6,244
June 2021	6,378
September 2021	5,024
December 2021	4,500
Historical Quarterly Usage	5,537

		Water	Sewer
200% of Historical Usage Cost Calculation			
200% of Historical Quarterly Usage	11,073		
Cost of Water (per 1,000)	$ 41.02	$ 454.21	
Cost of Sewer (per 1,000)	$ 18.06		$ 199.98
Incremental Cost Calculation			
Usage on March 2022 Bill	21,350		
Double the Historical Quarterly Usage	11,073		
Usage in excess of 200% of Historical Quarterly	10,277		
Incremental Cost for Water (per 1,000)	$ 2.54	$ 26.10	
Incremental Cost for Sewer (per 1,000)	$ 1.05		$ 10.79
Total Adjusted Bill			
Total Cost for Water		$ 480.31	
Total Cost for Sewer			$ 210.77
Total Adjusted Bill for March 2022	$ 691.08		
Total Adjustments on Bill			
Original Billed Amounts for March 2022	$ 1,261.36	$ 875.78	$ 385.58
Amount of Adjustment for March 2022		$ (395.47)	$ (174.81)

Costs for Water are based on PSC WV Tariff No. 6. Costs for Sewer are based on PSC WV Tariff No.7. Both effective 12/2024.



CMA Water & Sewer Leak Adjustment
Excluding Sewer Treatment for Leak

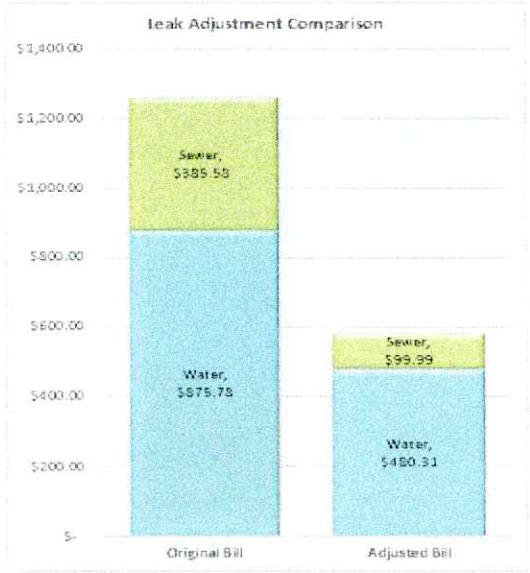
Lot number N-14
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Fields shaded in blue are entered using data from W&S financial records.
The form will automatically calculate the Leak Adjustment.

Normal Usage

March 2021	6,244
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Historical Quarterly Usage	5,537

			Water	Sewer
200% of Historical Usage Cost Calculation				
200% of Historical Quarterly Usage		11,073		
Cost of Water (per 1,000)	$	41.02	$ 454.21	
Cost of Sewer (per 1,000) Historical Usage only	$	18.06		$ 99.99
Incremental Cost Calculation				
Usage on March 2022 Bill		21,350		
Double the Historical Quarterly Usage		11,073		
Usage in excess of 200% of Historical Quarterly		10,277		
Incremental Cost for Water (per 1,000)	$	2.54	$ 26.10	
No Incremental Cost for Sewer (per 1,000)	$	1.05		$ 0.00
Total Adjusted Bill				
Total Cost for Water			$ 480.31	
Total Cost for Sewer				$ 99.99
Total Adjusted Bill for March 2022		$ 580.30		
Total Adjustments on Bill				
Original Billed Amounts for March 2022	$	1,261.36	$ 875.78	$ 385.58
Amount of Adjustment for March 2022			$ (395.47)	$ (285.59)



Costs for Water are based on PSC WV Tariff No. 6. Costs for Sewer are based on PSC WV Tariff No.7. Both effective 12/2024.

COOLFONT MOUNTAINSIDE ASSOCIATION
POLICY RESOLUTION 2026-03
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RESOLUTION ACTION RECORD

Duly adopted at a meeting of the Board of Directors held on: August 8, 2026.

Motion by: Norm Rosenberg Seconded by: Valerie Creason

Title, Name	For	Against	Abstain	Absent
President, Norm Rosenberg	X			
Vice President, Stephen Crane	X			
Secretary, Valerie Creason	X			
Treasurer, Jaron Ervin	X			
Director, David Creason	X			
Director, Evelyn Israel				X
Director, Nancy Lidard	X			

ATTEST:

Resolution effective date: September 1, 2026

Secretary Date 8/10/2026